

Acchelal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench (Chief Justice's Court) · 9 August 2023 · 2023:AHC:160141-DB · Writ-C No. 26331 of 2023 · **Writ disposed with liberty to file a clause 6.8 objection**

HEADNOTE

Writ disposed on the petitioner's prayer for withdrawal, with liberty to file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2006, the authority to decide that objection in accordance with law. No opinion on merits.

FACTUAL SUMMARY

Acchelal filed Writ-C No. 26331 of 2023 before the Allahabad High Court against the State of Uttar Pradesh and three others. Counsel for the Electricity Department appeared. After copies of the necessary documents were seen, counsel for the petitioner sought withdrawal of the petition with liberty to file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2006, and asked that the authority be directed to decide that objection by giving reasons.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Liberty to file a clause 6.8 objection on withdrawal of the writ

HOLDING

On the petitioner's prayer, the writ was disposed of with liberty to file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2006, and the authority was left to decide that objection in accordance with law. The Court expressed no opinion on the merits. ¶ 1

FLAG Order styles the Code as the U.P. Electricity Supply Code, 2006; clause cited is 6.8.

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ was disposed of by permitting an objection under clause 6.8, which the authority is to decide in accordance with law, without any determination of the merits. ¶ 1

fresh-objection-under-clause-6.8 Withdrawal was allowed with liberty to file an objection under clause 6.8 of the Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY DISPUTE AND OF THE CLAUSE 6.8 OBJECTION

The Court expressly expressed no opinion on the merits and left the objection to the authority to decide in accordance with law. ¶ 1